

24STCV18825 24STCV18825

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-28

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Case Number: 24STCV18825 Hearing Date: August 28, 2026 Dept: 510

No.

10 - Jaeil Lee v. Acuprogroup Inc., et al.

Plaintiff's Motion for Attorney Fees

Plaintiff Jaeil Lee ("Plaintiff") moves

for a total of \$11,200 in attorney fees[1]

and \$512.17 in costs against Defense counsel, Henry M. Lee ("Defense counsel").

As

an initial matter, the Court notes that Defense counsel's opposition brief was filed with the Court two days late. The opposition brief was due on August 17, 2026, and was not filed with the Court until August 19, 2026. There is no explanation for this delay in the papers. However, the Court exercises its discretion to consider the untimely filing when ruling on the motion. (See Cal. Rules of Court, rule 3.1300(d)).

Attorney

Fees

A. Entitlement

to Fees

On

August 19, 2025, the Court granted Plaintiff's ten motions to compel discovery responses and imposed \$7,600 in monetary sanctions, jointly and severally, against Defendants and their counsel of record for misuse of the discovery process. On October 15, 2025, Defense counsel filed an appeal from the

sanctions order. However, Defense counsel failed to file his opening brief. On March 17, 2026, the appeal was dismissed due to Defense counsel's default. The Court of Appeal issued remittitur on June 12, 2026.

Plaintiff

is entitled to attorney fees incurred on appeal of a discovery sanctions order. Under *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1151, "Sections 2023.030(a) and 2031.320(b) authorize recovery of attorney's fees and do not specifically preclude recovery of attorney's fees on appeal. [Citation.] Sections 2023.030(a) and 2031.320(b) therefore authorized [plaintiff's] recovery of attorney's fees expended in connection with the appeal of the sanctions order."

Defense

counsel argues that Plaintiff is not entitled to fees under the reasoning in *Baer* because Plaintiff does not identify the specific discovery statute that authorizes the appellate fees. The Court disagrees. In his notice of motion, Plaintiff identifies "§§ 2023.010, 2023.030, et seq." as providing a statutory basis for attorney fees.

Defense

counsel further argues that *Baer* limits recovery of fees to those incurred defending the sanctions order in substance; here, an opening brief was never filed, so Plaintiff did not incur any fees defending the sanctions order. While the Court understands Defense counsel's argument, *Baer* does not compel such a narrowed reading of "defending" a sanctions order. It is plausible that time incurred on pre-merits brief tasks was thought to be reasonable and necessary to defend the sanctions order on appeal at the time they were completed. These tasks would not have been necessary but for Defense counsel's appeal. Accordingly, Plaintiff is entitled to fees.

B. Reasonableness of Fees

Plaintiff presents billing records showing \$11,200 for 16 hours of work; this includes 7 hours of work on the appeal and 9 hours of work on this fee motion. (Park Reply Decl., Ex. J.) In determining what constitutes a reasonable fee, the court ordinarily begins with the lodestar, that is, "the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group

v. Drexler (2000) 22 Cal.4th 1084, 1095.) In calculating the lodestar, the court must determine whether the tasks performed by an attorney were necessary and whether the amount of time billed for each task was reasonable. (Baxter v. Bock (2016) 247 Cal.App.4th 775, 793.)

Plaintiff's

counsel billed at a \$700 attorney fee rate for some tasks that were clerical or could have been done by a paralegal or secretary. For example, counsel billed for tasks such as "issue check for Clerk's Transcript Fees," "calendar deadline," "check court docket on dates," "calendar new deadline," and "calendar date of finality." Billing time at attorney rates for such tasks was not reasonable.

Plaintiff's

counsel also billed at least 3 hours for reviewing various notices and orders issued by the Court of Appeal, such as a notice of appeal, notice of default, and remittitur, and the clerk's transcript. Billing that much time at attorney rates for reviewing simple documents is not reasonable.

For

these reasons, while Plaintiff's counsel's hourly rate is reasonable based on the Court's familiarity with attorney billing rates in Los Angeles County, the Court is unable to award the full amount of fees requested. Following review of Plaintiff's billing summary (Park Decl., Ex. F), the Court exercises its discretion to reduce Plaintiff's counsel's hours incurred on the appeal (time entries from October 3, 2025, to March 17, 2026, when the appeal was dismissed) to 1.9 hours. That time was spent for legal work performed on October 16 and November 13, 2025 and January 9, 2026. This totals \$1,330.

In addition, Plaintiff's counsel bills 9 hours

for drafting the motion and reply. It also includes Plaintiff's counsel's anticipated time spent attending the hearing on the motion. Plaintiff's counsel did not reasonably incur \$6,300 in fees on this motion. The motion itself is only 7.5 pages long and did not require significant research to complete. The Court will reduce the total hours requested for time spent drafting the motions, reply briefs, and attending the hearing by 50% (time entries from June 17, 2026 to August 28, 2026).

Therefore,

Plaintiff is entitled to \$1,330 for fees incurred on appeal and \$3,150 (\$700 *

(9 hours * 0.5)) for fees incurred drafting this motion. This totals \$4,480.

Costs

Plaintiff

also requests \$512.17 in costs incurred on appeal. The Court finds that all costs were reasonably incurred and will award the requested amount of costs in full. Defense counsel raises a concern that the Court's award of these costs will lead to double recovery of costs already recorded on Form APP-013. The Court disagrees. This court order confirms his entitlement to certain costs. The Court does not find this will lead to double recovery. To the extent that Defendant has already paid the \$512.17 in costs reflected on Form APP-013, no further payment is required as a result of this order.

Disposition

Plaintiff

Jaeil Lee's motion for attorney fees is granted in part. Plaintiff shall recover \$4,480 in attorney fees and \$512.17 in costs from Defense counsel Henry M. Lee.

[1] Plaintiff amended

his initial fee request from \$9,800 to \$11,200 to account for time incurred drafting the reply brief. The Court will analyze the \$11,200 amount when ruling on this motion.